

Statement of Work

1.0 Background

The U.S. Department of Justice, Executive Office for Immigration Review (EOIR), created the Legal Access Services for Reunified Families (LASRF) Program pursuant to the Settlement Agreement in *Ms. L., et al. v. U.S. Immigration and Customs Enforcement, et al.*, 18-cv-00428 (S.D. Cal. Oct. 16, 2023) (“Settlement Agreement”). The LASRF Program is divided into two components: (1) federalized services, including group orientations and group workshops, that EOIR provides, and (2) individualized services, including legal advice and document preparation, that the Contractor provides under this Statement of Work (SOW).¹ EOIR, through the federalized program, also operates a centralized email address and telephone number to receive requests for assistance and to connect eligible individuals to the full range of legal services that are available under the Settlement Agreement. EOIR refers eligible individuals to the Contractor for individualized assistance. The Contractor must also accept case referrals from third parties and respond to direct requests from *Ms. L.* Settlement Class members and Qualifying Additional Family Members seeking the legal services described in Section 7 of this SOW.²

2.0 Period of Performance

The period of performance for this contract is 12 months, commencing from the date of award.

3.0 Defined Terms

- 3.1 “Class Members” – Individuals the U.S. Department of Homeland Security (DHS) or a United States Federal Court confirmed as *Ms. L.* Settlement Class members under the Settlement Agreement.
- 3.2 “Qualifying Additional Family Members” – Individuals DHS determined meet the definition of Qualifying Additional Family Members under the Settlement Agreement.
- 3.3 “Program Participants” – Class Members and Qualifying Additional Family Members receiving services under this SOW.

¹ As discussed in more detail in Section 5.0 (Service Locations), the services described in this SOW may be provided by one contractor or multiple contractors operating from regional offices across the United States.

² Third parties may include Plaintiffs’ counsel, government agencies, government contractors, private practitioners, legal service organizations, and other groups working with *Ms. L.* Settlement Class members and Qualifying Additional Family Members.

4.0 Objective

The objective of this SOW is to satisfy the Government's obligations under the Settlement Agreement by delivering individualized legal services that complement the group orientations and workshops that EOIR provides to Program Participants.

5.0 Service Locations

- 5.1 The Contractor must provide the services described in Section 7.1 of this SOW from one or more regional offices,³ which the Government will determine in consultation with the Contractor.
- 5.2 The Contractor must arrange suitable space to provide the services described in this SOW at each designated regional office location. Suitable space may include a private office or other space that is appropriate for private discussions and workshops.
- 5.3 The Contractor must provide the services in Sections 7.1 and 7.2 of this SOW via remote technology to Program Participants who prefer remote services or are unable to receive in-person services at any of the regional offices. These remote services can be provided to Program Participants from private spaces via telephone, video-conferencing, or other multi-way remote communication. If remote services are inappropriate because of the Program Participant's language need or disability, the Contractor, with the Program Participant's consent, may submit a written request to the Contracting Officer's Representative (COR) for a transportation stipend from EOIR to allow the family to receive in-person legal services.
- 5.4 The Contractor must also provide pro bono mentorship, as described in Section 7.2 of this SOW, via remote technology. This pro bono mentorship must be available, upon request, to pro bono legal representatives anywhere in the United States who agree to provide free representation to Class Members who participate in the LASRF Program.

6.0 Service Preparation and Launch

The Contractor must submit a Program Operation Plan (POP) for the COR's approval no later than 10 business days from the start of the task order. The POP must include:

- 6.1 The structure and schedule of Individualized Consultations and Counseling sessions;
- 6.2 A plan for matching and mentoring pro bono attorneys to serve Program Participants;
- 6.3 A plan for facilitating case referrals from the Government, Government contractors, and third-parties to ensure Program Participants have access to LASRF services; and

³ Pursuant to the Settlement Agreement, the Government must implement the LASRF program in at least eight regional offices across the United States. The Government may select a single contractor to operate all eight regional offices or multiple contractors to individually operate one or more regional offices.

- 6.4 Contact information for each regional office that includes a dedicated phone number and email address for individuals seeking LASRF Program services from that location.

The COR will review the POP within 10 business days from the date the Government receives the proposed POP. If the Government requests changes to the POP, the Contractor will resubmit the POP to the Government within 5 business days from the Government's request for revisions.

7.0 Services to Provide

- 7.1 Immigration Legal Services for Class Members. The Contractor must provide legal assistance, short of full representation, to unrepresented Class Members as detailed below.

- 7.1.1 The Contractor must provide Individualized Consultations and Counseling sessions that include legal advice about what forms of relief for which they may be eligible and the steps necessary to apply for such relief. Individualized Consultations and Counseling sessions should help Class Members understand their legal situations under U.S. immigration laws, including any relevant information concerning initial and renewal applications for parole and employment authorization. The Contractor must respond to Class Members about specific concerns and questions regarding matters of immigration law and procedure and provide legal advice based on the Class Member's immigration circumstances. Individualized Consultations and Counseling sessions may consist of a single Class Member or a group of Class Members from the same family.
- 7.1.2 The Contractor must provide Individualized Consultations and Counseling sessions to prepare Class Members for EOIR court hearings and interviews before the U.S. Citizenship and Immigration Services (USCIS).
- 7.1.3 The Contractor must provide assistance with document preparation, including preparing immigration-related legal documents for submission to DHS (including USCIS), and EOIR pursuant to EOIR's limited appearance regulations.
- 7.1.4 The Contractor must use Individualized Consultations and Counseling sessions to distribute self-help legal materials that the Government will create for Program Participants.

- 7.2 Immigration Legal Services for Qualifying Additional Family Members. The Contractor must provide legal assistance, short of full representation, to unrepresented Qualifying Additional Family Members to help Qualifying Additional Family Members with initial and renewal applications for parole and employment authorization. The Contract may provide parole and employment authorization application services to Qualifying Additional Family Members through Individualized Consultations and Counseling sessions or group sessions to assist with document

preparation.

7.3 Pro Bono Matching and Mentorship. The Contractor will individually screen Class Members who request a referral to a pro bono legal representative. The Contractor will use those screenings to match Class Members with interested pro bono legal representatives. In all circumstances, the Contractor must emphasize that pro bono screenings do not guarantee representation.

7.2.1 EOIR may provide a list of legal representatives who express interest in representing Class Members. The Contractor may also choose to match cases with volunteer legal representatives who are not on EOIR's list of volunteers.

7.2.2 The Contractor must inform all pro bono legal representatives who agree to represent a Class Member through the LASRF Program about the self-help resources that may be available to them through EOIR, including any electronic library of pro bono resources and any Model Hearing Program to support volunteer legal representatives.

7.2.3 The Contractor must provide mentorship for volunteer legal representatives who require additional support to effectively represent Class Members.

7.2.4 The Contractor must notify pro bono attorneys who accept a case referral from the LASRF Program about any pro bono psychological evaluations that may be available to Class Members under the Settlement Agreement.

7.4 Affirmative Outreach. The Contractor must accept case referrals from EOIR and use the contact information contained in the referrals to schedule Program Participants for individualized legal services as described in this Section of this SOW. The exchange of this information is limited to the extent permissible under law and subject to rules concerning the distribution of personally identifiable information (PII).

8.0 Reporting Requirements

If a reporting deadline for any of the reports described below falls on a weekend or holiday, then the Contractor may submit the report on the next business day.

8.1 Monthly Status Report. The Contractor must submit a status report to the COR, together with a monthly invoice, on or before the 25th calendar day of the month following the reporting period. The status report must provide the following data points: (i) current invoice month spending; (ii) current approved budget; (iii) prior spending for each invoice period since the beginning of the task order year; and (iv) applicable budget analysis as appropriate to explain month-to-month invoice variances. The report must include the labor hours, broken down by labor category, upon which the invoice is predicated. The status report and invoice must not include PII.

8.2 Monthly Performance Report. The Contractor must submit a monthly report to the COR on or before the 25th calendar day of the month following the reporting period. Each report must be broken down by the type of services provided during the reporting period as well as services provided cumulatively from the beginning of the task order year. The data in the monthly report must distinguish between services for Class Members and Qualifying Additional Family Members and must include: (i) the names and A-numbers of Program Participants receiving services under this SOW; (ii) the number and type of services provided to Program Participants under this SOW; (iii) the total number of unique Program Participants served; (iv) the unique number of Program Participants receiving each type of service under this SOW cumulatively, as well as at each regional office; (v) the names and A-numbers of Program Participants who received assistance with parole or re-parole applications; (vi) the total number of Program Participants who received assistance with initial and renewal employment authorization applications; (vii) the names and A-numbers of Program Participants who missed a filing deadline before receiving an Individual Consultation or Counseling session, including the type of deadline (including parole, re-parole, employment authorization, asylum, or a request for evidence) that the Program Participant missed; (viii) the total number of outreach attempts made to Program Participants from EOIR referrals, including the date, manner, and result of the outreach; (ix) the number of Program Participants whose cases were referred to a pro bono legal representative; (x) the number of pro bono legal representatives receiving mentorship; and (xi) other data the COR deems necessary.

9.0 Security and Privacy Requirements

- 9.1 The Contractor must meet Government requirements for the security, privacy, and management of U.S. Department of Justice (DOJ) and EOIR information, records, and systems. This includes compliance with DOJ-02 and DOJ-05 of the DOJ Departmental Provisions and Clauses and the Paperwork Reduction Act.
- 9.2 The Contractor must provide the Government full access to data collected for the performance of this task order, not subject to any privilege or otherwise protected from disclosure under the law. Information the Contractor collects in the performance of services under this SOW is considered EOIR information and is part of an official EOIR record and can be provided to the Government without consent from the Program Participant. Information the Contractor collects about a Program Participant while performing the services described in this SOW is not releasable to any other party without the Program Participant's written consent, subject to the exception to the written consent requirement in Section 10.2 of this SOW.
- 9.3 Any information collection instruments developed or utilized by the Contractor or any subcontractors (at any tier) must comply with the Paperwork Reduction Act (PRA). To the extent practicable, the Contractor or any subcontractor should use existing Government forms and instruments to collect information. If any additional information collection is needed that cannot be accomplished by existing Government forms or instruments, the Contractor or any subcontractor must include the necessary

information collection instruments in the POP and cooperate with the Government to obtain any necessary PRA clearance.

- 9.4 Services related to this SOW must be performed under this SOW, and records of all work performed under this SOW must be maintained separately from any other contract vehicle entered into between the Contractor and the DOJ or between any subcontractor and the DOJ. Such records must be available to EOIR at EOIR's request and must be maintained according to DOJ record-keeping requirements.

10.0 Third-Party Written Consent Requirements

- 10.1 For the Contractor to release information and/or documents collected during the performance of services under this task order to third parties, including for purposes of pro bono referral and placement, the Contractor must obtain written consent from each Program Participant. A parent or guardian can provide consent for children under 14, and individuals 14 and older can consent for themselves. Electronic signatures are permitted for written consent. The Contractor must maintain consent records according to applicable Government records retention schedules and must submit the written consent form to the COR for approval prior to use.
- 10.2 If the Contractor is unable to obtain consent from the Program Participant or has a reason to release the information without the Program Participant's signed consent, the Contractor must receive written authorization from the COR, in consultation with EOIR's Office of the General Counsel (OGC), before any such release of information. The Contractor must submit a written request for exceptions to the third-party written consent requirement to the COR, detailing the reasons for the request. The COR and EOIR's OGC must approve, deny, or request additional information, if needed, within five (5) business days. Such requests must be legally justified to warrant approval, meaning they must be supported by a valid legal reason in compliance with applicable law. The Contractor must document the verbal consent and retain records in accordance with DOJ retention requirements.

11.0 Written Acknowledgment Requirements

- 11.1 The Contractor must explain to all individuals receiving services under this SOW that they are a Contractor for the DOJ and are not the Program Participant's attorney or representative.
- 11.2 For all Individualized Consultation and Counseling sessions, the Contractor must also obtain written acknowledgment from each Program Participant stating, in effect, that they: (i) understand the Contractor is not their attorney or representative in any capacity; (ii) voluntarily provided their personal information to the Contractor; (iii) understand that the program cannot guarantee pro bono representation; and (iv) are not represented by an attorney or DOJ Accredited Representative at the time of receiving legal services. The Contractor must submit the written acknowledgment form to the COR for approval prior to use.

- 11.3 Only one written acknowledgment form is required per individual. The Contractor must retain records of written acknowledgment from each unrepresented individual according to applicable records retention schedules. Written acknowledgment can include electronic signatures. The Contractor will introduce data entry protocols no later than thirty (30) calendar days after the beginning of the task order to confirm that either written acknowledgment has been secured or a waiver for this requirement has been received from the COR for all services entered in the Contractor's information system that require written acknowledgment. The COR may grant exceptions to the written acknowledgment requirement on a case-by-case basis. The COR will deny or approve exceptions to the written acknowledgment within three business days. Written acknowledgments are considered an official EOIR record and must be maintained by the Contractor as such, according to DOJ record-keeping requirements.
- 11.4 Providing legal advice alone to an unrepresented Program Participant does not require the Contractor or legal service provider to enter an appearance to represent the Program Participant in proceedings before EOIR pursuant to 8 C.F.R. § 1003.17. The Contractor and any of its subcontractors performing services under this SOW will be bound by ethical obligations and privileges when providing legal advice as required by their state bar and EOIR ethics rules.

12.0 Additional Responsibilities

In performing the obligations under this SOW, the Contractor must:

- 12.1 Coordinate with EOIR, DHS, DHS contractors, and other individuals or organizations that the Contractor and COR deem necessary to satisfy performance under this SOW.
- 12.2 Review available information, such as contact lists, filing deadlines, expiration dates, or other information the Government may provide concerning Program Participants, subject to applicable privacy and confidentiality laws and consistent with any necessary clearances.
- 12.3 Conduct LASRF services in the language most appropriate for the Program Participant. If the Program Participant does not understand the language in which the services are conducted, the Contractor must provide trauma-informed interpretation.
- 12.4 Submit any materials produced under this task order to the COR for approval prior to distributing them to Program Participants or pro bono legal representatives. This includes submission of any forms or information collection instruments in any format to collect information from Program Participants. All information collection instruments must comply with the Paperwork Reduction Act.
- 12.5 Report to the COR any problems that arise related to the performance of the specific tasks in this SOW and consult with the COR to resolve such problems.

- 12.6 Coordinate with the COR to conduct site visits to monitor performance and provide feedback regarding program services at each regional office that the COR designates. The Contractor will conduct site visits remotely with EOIR, unless the Contractor receives written approval from the COR to conduct a site visit in-person under justified circumstances. Following the site visit, the Contractor will draft a written memorandum detailing the site visit, including individual evaluations for each service that is required under Section 7 of this SOW. The Government will review the Contractor's draft and provide feedback for the Contractor to incorporate into the site visit memorandum prior to finalizing the document.
- 12.7 Conduct monthly conference calls with all LASRF regional offices and the Government to discuss program operations and performance. The Contractor must record written notes memorializing the attendees, announcements, main points, and other relevant information shared in the monthly conference calls. The Contractor must provide the written conference call notes to the COR within 21 calendar days from the call. The Government and the Contractor may consult with each other to determine instances where written updates can substitute monthly conference calls.
- 12.8 Ensure that all LASRF service providers, including presenters and consultants, are attorneys, DOJ Accredited Representatives with full accreditation, or other Contractor staff working under the direct supervision of an attorney or DOJ Accredited Representative with full accreditation, with reasonable exceptions to be approved by the COR. Direct supervision means that an attorney or DOJ Accredited Representative with full accreditation is present at the site on the day of services to consult with LASRF staff or, in the event of emergent circumstances preventing on-site presence at the location, is reachable by telephone to consult with LASRF staff prior to the completion of LASRF services on the day the guidance is requested. If the Contractor is providing services via remote technology, direct supervision means that an attorney or DOJ Accredited Representative with full accreditation is available to the LASRF staff by phone within five minutes of LASRF staff sending notice of a need for contact.
- 12.9 Contract funds are specifically restricted to the services outlined within this SOW and may not be used to provide "representation" within the meaning of 8 C.F.R. §1001.1(m).

*******END OF STATEMENT OF WORK*******